

Court No. - 3

Case :- WRIT - C No. - 9006 of 2022

Petitioner :- Avneesh Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mithilesh Kumar Tiwari

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the parties.

2. This writ petition has been filed praying for the following reliefs :

"i) Issue a writ, order or direction in nature of certiorari quashing the impugned provisional assessment notice dated 21.02.2022 issued by respondent no.3 (Annexure No.4 to this writ petition).

ii) Issue a writ, order or direction in nature of mandamus commanding the respondent nos.2 & 3 to make renewal the temporary electricity connection No.712103309476 of the petitioner since 12.02.2022 to 30.05.2022 and connect the electric supply of the petitioner for running his Ganna Perai Kohu, load 08 KW (10 H.P.) in pursuance of his renewal application dated 10.02.2022."

3. Shri Rajesh Yadav, learned counsel for the respondent nos.2 and 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within

next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 18.5.2022

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